

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Cassandra Fenkel	Team: Squad #10	CCRB Case #: 201509153	☒ Force ☒ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Monday, 10/12/2015 12:35 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 4/12/2017	Precinct: 105
Date/Time CV Reported Mon, 10/12/2015 4:25 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 10/26/2015 7:28 AM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Rachid Benlhousain	21282	945504	HWY 03
2. POM Paul Deveraux	23902	918939	HWY 03

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Ryan Storz	00524	949699	HWY 03

Officer(s)	Allegation	Investigator Recommendation
A . POM Rachid Benlhousain	Force: PO Rachid Benlhousain used physical force against § 87(2)(b)	A . Complainant Unavailable
B . POM Paul Deveraux	Force: PO Paul Deveraux struck § 87(2)(b) with a gun.	B . Complainant Unavailable
C . POM Paul Deveraux	Force: PO Paul Deveraux used physical force against an individual.	C . Victim Unidentified
D . POM Paul Deveraux	Discourtesy: PO Paul Deveraux spoke discourteously to an individual.	D . Victim Unidentified

Case Summary

The following case was received at the CCRB on October 26, 2015, via IAB log #15-30972. The CCRB sent a first please call letter to § 87(2)(b) on October 30, 2015. A first call was placed to § 87(2)(b) on November 2, 2015, and a voicemail was left. Searches of the NYPD Booking, Arraignment, and Disposition System, the CTS database, and Lexis Nexis failed to yield any additional contact information for § 87(2)(b). A search of the Cole Directory provided an additional telephone number for § 87(2)(b). Between November 5, 2015, and November 17, 2015, four additional calls were placed to both telephone numbers on file for § 87(2)(b). During a call on November 9, 2015, a message was left with § 87(2)(b)'s sister, who took a message for him to contact the CCRB, and confirmed that § 87(2)(b) did not have a direct phone number at which he could be reached. On all other occasions, voicemails were left at both telephone numbers on file for § 87(2)(b). A final please call letter was sent to § 87(2)(b) on November 13, 2015. None of the letters sent to § 87(2)(b) have been returned as undeliverable by the U.S. Postal Service. A search of the NYC Department of Correction Inmate Lookup website conducted on November 17, 2015, confirmed that § 87(2)(b) is not incarcerated. Det. Crandon of the IAB/CCRB Liaison Unit confirmed that there was no additional contact information on file for § 87(2)(b) or any other civilian associated with the complaint. Though § 87(2)(b) raised allegations on behalf of another individual, § 87(2)(b) did not provide their name or contact information. § 87(2)(g)

§ 87(2)(b) To date, § 87(2)(b) has not contacted the CCRB regarding the complaint. It is therefore recommended that **Allegation A** and **Allegation B** be closed as **complainant unavailable** and **Allegation C** and **Allegation D** be closed as **victim unidentified**.

Squad:

Investigator: _____
Signature Print Date

Pod Leader: _____
Title/Signature Print Date

Attorney: _____
Title/Signature Print Date